
Case	Title / Nature of Case
9:00 AM	
Line 1	
23-CIV-01880	RUI DING VS. YIQIN WANG, ET AL

RUI DING
YIQIN WANG

JEREMY D. CLOYD
PHILIP A. SEGAL

Cross-Defendant Yixin Chi's Motion for Summary Judgment on FX10, LLC. and Plan B Equipment Rentals' First Amended Cross Complaint (withdrawn as to Yincheng Zhao's Cross Complaint)

TENTATIVE RULING:

Initially, the Court notes that Defendant Yiqin Chi (herein, "Cross-Defendant" unless another cross-defendant is specified) has not provided the proper address for the hearing. Department 20 is located at the Northern Branch, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

This is Cross-Defendant Yixin Chi's ("Chi") Motion for Summary Judgment on FX10, LLC dba Berryessa Water Sports and Plan B's (jointly referred to as "BWS") First Amended Cross-complaint ("FACC"). After review of all of the pleadings filed in support of and in opposition to the motion, the motion is GRANTED.

BWS' Request for Judicial Notice of Cal. Harbor and Navigations Code Section 661, and the federal Limitation of Liability Act or "LOLA" in 46 U.S.C. § 30505 (2021) is granted, but not for the truth of any matter asserted therein.

Summary of Facts

The Complaint alleges that in a catastrophic boating accident, Plaintiff Rui Ding had been wakeboarding behind a motorboat that Cross-Defendant Yiqin Wang and Cross-Defendant Yincheng Zhao had rented from Cross-Complainants FX 10 Int'l, Inc., dba Berryessa Water Sports, and Plan B Equipment Rentals LLC (herein, "Cross-Complainants" unless another cross-complainant is specified), when plaintiff got sucked into the propeller of its outboard motor by her foot which was then apparently horribly mangled.

There are numerous cross-complaints in this action. The instant motion is directed to the FACC filed by Cross-Complainants on March 6, 2025, against Cross-Defendant Chi.

Legal Discussion

BWS filed an omnibus Opposition to three Motions for Summary Adjudication / Judgment on 7/17/2026, which contained four evidentiary or procedural objections.

1. The objection that each moving party fails to carry the initial burden under Code of Civil Procedure Section 437c, is overruled. This type of omnibus objection is improper, as each motion needs to be determined on the merits and objections have to be addressed specifically.
2. The objection to noncompliant separate statements was not addressed to Chi, and is thus moot.
3. The objection that the motion seeks improper resolution of fact-intensive issues, is overruled. This type of omnibus objection is improper, as each motion needs to be determined on the merits and objections have to be addressed specifically.
4. Evidentiary objections in separate statements are overruled as an omnibus objection; but will be addressed below as needed in reference to specific objections in separate statements.

A. Legal Standard on Summary Judgment & Summary Adjudication

“A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code of Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (*Id.*, at subd. (c).)

A defendant moving for summary judgment has an initial burden of showing either that one or more elements of a cause of action cannot be established or that there is a complete defense to the cause of action. (Code of Civ. Proc., § 437c, subd. (p)(2).) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as either to the cause of action or a defense thereto, as applicable. (*Ibid.*)

The moving party’s ultimate burden of persuasion that there are no issues of triable fact, however, never truly shifts to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden is unaffected by the strength or weakness of the showing in opposition to the motion (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519), and summary judgment must be denied—despite deficiencies in the opposition—if the initial burden has not been carried (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416).

Because summary judgment deprives an adverse party of the right to a trial, any doubts are resolved in favor of the party opposing the motion. (*Huynh v. Ingersoll-Rand* (1993) 16

Cal.App.4th 825, 830; *See's Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900.) Thus, “[t]he moving party’s affidavits are to be strictly construed, and ... all conflicts in the affidavits are to be resolved in favor of the opposing party and all reasonable inferences are to be drawn in favor of that party as well.” (*Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 20.) In the present case, however, plaintiff has not filed any opposition whatsoever and there exists no conflicts in the record to be resolved in favor of the plaintiff.

B. Chi is Entitled to Summary Judgment on the 2nd Cause of Action (“C/A”) for Express Contractual Indemnity and 5th C/A for Declaratory Relief

Chi argues that it is entitled to summary judgment on the 2nd C/A for Express Contractual Indemnity and 5th C / A for Declaratory Relief, as Chi only signed a passenger waiver which undisputedly does not provide for express indemnity. Separate Statement of Undisputed Material Facts (“UMF”), No. 3. BWS concedes that Chi indeed only signed a passenger waiver. Opp. Pg. 15, lines 14-15. The Court already concluded that a passenger waiver “does not include a provision to defend and indemnify, unlike the Driver waiver.” See UMF No. 28. This is conclusive, there is no express contractual indemnity clause between these parties, and thus the motion is GRANTED on the 2nd and 5th C/A.

C. Chi is Entitled to Summary Judgment on the 1st C/A for Equitable Indemnity, and related 3rd C/A for Contribution, and 4th C/A for Apportionment.

Chi’s principal argument is that Chi did not owe any duty or breach any duty to Plaintiff Rui Ding for the claimed injury, and that Chi was not the causal factor of Plaintiff’s injuries. “**There can be no indemnity without liability**, that is, the indemnitee and the indemnitor must share liability for the injury. Thus, no indemnity may be obtained from an entity that has no pertinent duty to the injured third party.” *Jocer Enterprises, Inc. v. Price* (2010) 183 Cal.App.4th 559, 573 (citations omitted; emphasis added).

Chi only signed a passenger waiver which undisputedly does not provide for express indemnity. UMF, No. 3. At the relevant time when it was Plaintiff’s turn to wakeboard, Wang was the driver of the boat. UMF, No. 5. Wang saw that Plaintiff was done wakeboarding and fallen into the water, and after seeing Plaintiff’s signal, Wang turned the boat around to pick her up. UMF, No.’s 6-8. The accident itself occurred, and when Wang observed Plaintiff under water he and Chi jumped in the water to rescue the Plaintiff as Chi held Plaintiff’s head above the water to ensure she could breath. UMF No.’s 9-15. Though BWS’ Separate Statement in Opposition attempts to argue the impact and interpretation of these facts, the material facts are not at issue as between these parties in relation to this motion.

BWS opposition is solely that despite Chi being a mere passenger, that Chi owed the Plaintiff a co-participant duty of care under *Knight v. Jewett* (1992) 3 Cal.4th 296, 315-316. BWS misinterprets and/or misapplies the holding of *Knight*, as its holdings do not help BWS' position.

Knight holds:

“[D]efendants generally do have a duty to use due care not to increase the risks to a participant over and above those inherent in the sport.” *Id.* at 316. “Additionally, the scope of the legal duty owed by a defendant frequently will also depend on the defendant’s role in, or relationship to, the sport.” *Id.* at 317.

However, the fundamental ruling of *Knight* is stated in:

“we conclude that a participant in an active sport breaches a legal duty of care to other participants-i.e., engages in conduct that properly make subject him or her to financial liability-**only if the participant intentionally injures another player or engages in conduct that is so reckless** as to be totally outside the range of the ordinary activity involved in the sport.” *Id.* at 320 (emphasis added).

Again the undisputed facts are that Chi was a passenger who only signed a passenger waiver. UMF No. 3. During Plaintiff’s turn to wakeboard, Wang (and thus not Chi) was the driver of the boat and Wang (thus not Chi) is the person who turned the boat around to pick-up Plaintiff. UMF No. 5 & 8. Up to the time of the accident itself, there are zero additional material facts claimed by either side, that Chi was anything more than a passenger and spectator. From the moving party, the next fact in relation to Chi was that Chi was a good samaritan who ultimately helped rescue the Plaintiff. UMF No. 14-15. In contrast, BWS’ lone fact potentially at issue is in claiming that “Chi was a co-participant in a joint recreational activity (wakeboarding) and was present on the boat during the entire incident.” BWS’s Additional Facts No. 41. However, this statement under No. 41 adds nothing more, and simply reinforces that Chi indeed was “present.”

Chi’s mere presence, is clearly not any form of intentional conduct that injured the Plaintiff, nor is simply being there anywhere close to a level of reckless activity. Under *Knight*, Chi has no potential liability. *Knight* analyzes a plethora of cases all for the same basic proposition, that intentional or reckless conduct is required for claims against others participating in sports activities. *Id.* 317-321. The *Knight* court also specifically examined and approved of a prior appellate case of *Ratcliff v. San Diego Baseball Club* (1938) 27 Cal.App.2nd 733, a case where a baseball spectator was hit by an accidentally thrown bat, with *one* claim against the baseball player who threw the bat, and a *second* claim against the stadium owner for failing to provide a reasonably safe stadium. *Knight*, *supra*, 3 Cal.4th 296, 317. This Court highlights that case for illustrative purposes. For obvious reasons there was no viable *third* claim by the *Ratcliff* plaintiff against the hundreds or thousands of spectators in the baseball stands at the time of the accident. Likewise, there is no viable claim based on any disputed material facts, for liability to attach to Chi

as a passenger and spectator.

The motion is thus GRANTED on the 1st, 3rd and 4th C/A.

Summary Judgment is thus GRANTED in favor of Chi, against the BWS cross-complaint on all causes of action.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 2

23-CIV-01880 RUI DING VS. YIQIN WANG, ET AL

RUI DING
YIQIN WANG

JEREMY D. CLOYD
PHILIP A. SEGAL

Defendant and Cross-Defendant Yiqin Wang's Motion for Summary Adjudication of FX10, LLC.'s Express Contractual Indemnity Cause of Actions of the Cross Complaint

TENTATIVE RULING:

Initially, the Court notes that Defendant Yiqin Wang (herein, "Cross-Defendant" unless another cross-defendant is specified) has not provided the address for the hearing. Department 20 is located at the Northern Branch, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Through his Motion for Summary Adjudication of FX10's Express Contractual Indemnity Cause of Action of Its Cross-Complaint by Cross-Defendant Yiqin Wang (the "Motion"), Cross-Defendant seeks summary adjudication of four Issues defined in the Motion.

The Motion for Summary Adjudication as to Issue No. 1 is DENIED.

The Motion for Summary Adjudication as to Issue No. 2 is DENIED.

The Motion for Summary Adjudication as to Issue No. 3 is DENIED.

The Motion for Summary Adjudication as to Issue No. 4 is DENIED.

Cross-Defendant's Request for Judicial Notice is GRANTED.

Cross-Complainants' Request for Judicial Notice is GRANTED in part, and DENIED in part.

Cross-Complainants' Evidentiary Objections in Opposition are NOT REACHED due to their impropriety, as addressed *infra*.

Cross-Defendant's Evidentiary Objections in Reply are OVERRULED.

Background

The Complaint alleges that in a catastrophic boating accident, Plaintiff Rui Ding had been wakeboarding behind a motorboat that Cross-Defendant Yiqin Wang and Cross-Defendant Yincheng Zhao had rented from Cross-Complainants FX 10 Int'l, Inc., dba Berryessa Water Sports, and Plan B Equipment Rentals LLC (herein, "Cross-Complainants" unless another cross-complainant is specified), when plaintiff got sucked into the propeller of its outboard motor by
